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N° 43

LIFE SITUATIONS

COLLECTION

Buying as a Couple

Common-law partners, co-ownership and agreements — protect yourselves as a couple.



BUY TOGETHER, LIVE IN HARMONY, PROTECT YOUR FUTURE.

The legal and financial keys to secure your purchase as a couple.

2026 EDITION

BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

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Buying as a Couple · Collection Life Situations · Guide No. 43 · 2026 Edition

COLLECTION LIFE SITUATIONS · GUIDE NO. 43

Buying as a Couple

Common-law partners, undivided co-ownership and agreements — protect yourselves

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Buying property as a couple is a great step - and an important legal decision. Especially for common-law couples, whose rights differ from those of married couples, it is essential to properly structure the purchase to protect yourself.

This guide covers ways to hold property jointly, the importance of an agreement, and the protections to provide.

Informative content, not legal advice: consult a notary. Each chapter ends with a lined “My Notes” page.

Buying as a couple is a great step - and an important legal decision, especially for common-law couples, whose rights differ from those of married couples. This guide covers ways of holding together, the importance of an agreement and the protections to provide.

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CHAPTER

Married and common-law partners

> *Understand why status changes everything.*

In Quebec, married or civilly united couples benefit from protection rules (**family heritage**) which surround the family residence.

The **de facto spouses**, they do not have *not* these automatic protections: in the event of separation or death, their rights depend above all on what is **writes** (title, agreement, will).

Many common-law partners are unaware of this reality - and discover it at the worst time.

In Quebec, married and civil unions benefit from protections for family assets; de facto spouses, no - their rights depend mainly on the writing (title, agreement, will). Many people ignore it and discover it at the worst time: for an unmarried couple, everything depends on the documents.

> EMILIE'S ADVICE
>
> *“We've been together for 15 years, it's like a marriage. » No: in Quebec, de facto union does not create the same rights. For an unmarried couple, everything depends on the documents.*

CHAPTER

How to hold property

> *Choose the holding structure.*

How to register the property on title is a decision **structuring** :

- In **joint ownership**, in equal shares (50/50) or according to each person's contribution.
- The **title** must clearly reflect who owns what.

If only one spouse has title, the other may find themselves without rights to the property - even after years and numerous payments. Make this choice with full knowledge of the facts.

The way of registering the property in the title is structuring: in joint ownership, in equal shares or according to the contribution of each person. If only one spouse is on title, the other may find themselves without rights - even after years of payments. If you pay half, make sure you get the title.

> EMILIE'S ADVICE
>
> *If you pay half the mortgage, make sure you're on title. Contributing financially without appearing on the title is the classic scenario where you lose everything when you separate.*

CHAPTER

The agreement between spouses

> *Plan for the unexpected in writing.*

An agreement (often a **joint ownership agreement** or a cohabitation contract) specifies in advance what could otherwise be settled in court:

- The **distribution of shares**.
- Who pays what (mortgage, taxes, maintenance).
- What happens in the event of **separation** (purchase, sale, deadlines).
- What happens in the event of **death** (with the will).

It's a bit like insurance: you hope you'll never use it, but it avoids painful conflicts.

An agreement (of joint ownership or cohabitation) specifies in advance what would otherwise be settled in court: distribution of shares, who pays what, and what happens in the event of separation or death. Write it when everything is going well, not in the middle of a breakup.

> EMILIE'S ADVICE
>
> *Write the agreement WHEN things are going well, not when things are going badly. Calmly discussing the "what if one day..." when purchasing is infinitely simpler than in the middle of a breakup.*

CHAPTER

Protecting the survivor: will and insurance

> *Also think about the death, not just the breakup.*

For de facto spouses especially, the death of one partner can leave the other in a precarious situation if there is nothing planned.

- **Will** : without it, a de facto spouse does not automatically inherit.
- **Life insurance** : can allow the survivor to repurchase the share or repay the mortgage.
- **Clause in the agreement** : coordinate with the will.

These tools, put in place together, form a real safety net.

Also think about death: without a will, a common-law partner does not automatically inherit. Life insurance can allow the survivor to buy back the share or repay the mortgage, avoiding a fire sale. Coordinate agreement, will and insurance.

> EMILIE'S ADVICE
>
> *Life insurance that covers the balance of the mortgage prevents the survivor from having to sell in disaster. This is often one of a couple's best peace of mind purchases.*

CHAPTER

Buying together, step by step

> *Structure the purchase calmly.*

For a well-planned purchase for two, follow this logical order:

1. **Clarify** your status and your real protections.
2. Decide on **distribution of shares**.
3. Have a written **convention** by a notary.
4. Update your **wills** accordingly.
5. Register the property in **title** in accordance with the agreement.

A little rigor at the start protects your relationship - and your assets - for a long time.

For a well-planned joint purchase: clarify your status, decide on the distribution, have an agreement drawn up by a notary, update your wills, and register the property on the title in accordance with the agreement. It's not a lack of trust, it's mutual respect.

> EMILIE'S ADVICE
>
> *Treat the purchase together as a small joint project: a written agreement, clear roles, up-to-date documents. It's not a lack of trust, it's mutual respect.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Clarify our status and our real protections.
2. Decide on the distribution of shares.

Within 30 days

1. Have an agreement drawn up by a notary.
2. Update our wills accordingly.

Then

1. Register the property on title in accordance with our agreement.

To structure well

1. Clarify our status and decide on the distribution of shares.
2. Have an agreement drawn up and our wills updated.

REFERENCES

Resources & glossary

- Family assets: protections for married couples/civil unions.
- De facto spouses: without automatic protections; the written word takes precedence.
- Joint ownership: joint ownership, in equal shares or according to contribution.
- Joint ownership agreement: agreement regulating shares, payments and exits.
- Property title: must reflect the real agreement of the couple.

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GO FURTHER

Quiz - test yourself

1. Married couples benefit from:

A) No protection
B) Protection of family assets
C) Reduced taxes
D) A free mortgage

2. Common law spouses:

A) Have the same protections as married couples
B) Do not have automatic protections; the written word takes precedence
C) Cannot buy
D) Automatically inherit

3. If only one spouse is in title:

A) The other is automatically protected
B) The other may find himself without rights to the property
C) The city decides
D) Nothing changes

4. In joint ownership, the shares can be:

A) Always 50/50 necessarily
B) Equal or according to the contribution of each
C) Set by the city
D) Non-existent

5. The agreement between spouses specifies:

A) The color of the walls
B) Shares, payments, separation and death
C) Municipal taxes
D) The interest rate

6. The best time to draw up the agreement is:

A) In the middle of a breakup
B) When all is well, to purchase
C) Never
D) After ten years

7. Without a will, a common-law partner:

A) Automatically inherits
B) Does not automatically inherit
C) Pay less taxes
D) Becomes married

8. Life insurance can allow the survivor to:

A) Avoid the notary
B) Redeem the share or repay the mortgage
C) Double your taxes
D) Nothing

9. The title deed must:

A) Ignore the agreement
B) Reflect the real understanding of the couple
C) Be in the name of the bank
D) Stay empty

10. Structuring the purchase as a couple means above all:

A) A lack of confidence
B) Mutual respect and foresight
C) A waste of time
D) Illegal

Answers

1. B - Family heritage (chap. 1).
2. B - Writing takes precedence (chap. 1).
3. B - The title is structuring (chap. 2).
4. B - Equal or according to the contribution (chap. 2).
5. B - It regulates the scenarios (chap. 3).
6. B - Anticipate (chap. 3).
7. B - The will is essential (chap. 4).
8. B - Safety net (chap. 4).
9. B - Title/agreement consistency (chapters 2 and 5).
10. B - Foresight and respect (chap. 5).

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You now have the right keys in hand.

Every real estate journey is different.

If you would like to go further,
I would be happy to discuss
your project with you.



Make informed decisions.
Choose with confidence.
Live without regrets.
See you soon,
Emilie ☺

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